SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Writ Petition (Civil) No. 562 of 2012 (YEAR: 2019)

CORAM: DIPAK MISRA, R.F. NARIMAN, A.M. KHANWILKAR, D.Y. CHANDRACHUD, INDU MALHOTRA

Joseph Shine
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Indian Penal Code, 1860, Code of Criminal Procedure, 1973, Constitution of India
Sections:	Section 497 IPC, Section 198(2) CrPC, Article 14, Article 21

JUDICIAL HEADNOTE & SUMMARY

Struck down Section 497 IPC criminalizing adultery as unconstitutional, ruling that treat women as chattel of their husbands violates Articles 14 and 21.

RATIO DECIDENDI

The Court held that: Struck down Section 497 IPC criminalizing adultery as unconstitutional, ruling that treat women as chattel of their husbands violates Articles 14 and 21. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Joseph Shine v. Union of India (Writ Petition (Civil) No. 562 of 2012) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Indian Penal Code, 1860, Code of Criminal Procedure, 1973, Constitution of India, particularly Section 497 IPC, Section 198(2) CrPC, Article 14, Article 21. Struck down Section 497 IPC criminalizing adultery as unconstitutional, ruling that treat women as chattel of their husbands violates Articles 14 and 21.

OPERATIVE ORDER

ORDER: Decided